

The Bureau of Indian Standards (Advisory Committees) Regulations, 2018

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The Bureau of Indian Standards (Advisory Committees) Regulations, 2018

Rule THE-BUREAU-OF-INDIAN-STANDARDS-ADVISORY-COMMITTEES-REGULATIONS-2018 of 2018

Published on 7 June 2018

Commenced on 7 June 2018

[This is the version of this document from 7 June 2018.]

[Note: The original publication document is not available and this content could not be verified.]

The Bureau of Indian Standards (Advisory Committees) Regulations, 2018

Published vide Notification F. No. BS/11/04/2018, dated 7.6.2018

Last Updated 8th June, 2018

F. No. BS/11/04/2018. - In exercise of the powers conferred by section 39 read with section 5 of the Bureau of Indian Standards Act, 2016 (

11 of 2016

) and in supersession of the Bureau of Indian Standards (Advisory Committees) Regulations, 1987 except as respects things done or omitted to be done before such supersession, the Executive Committee of the Bureau of Indian

Standards, with the previous approval of the Central Government, hereby makes the following regulations, namely:-

1.

Short title and commencement.

(1)

These regulations may be called the Bureau of Indian Standards (Advisory Committees) Regulations, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these regulations, unless the context otherwise requires, -

(a)

"Act" means the Bureau of Indian Standards Act, 2016 (11 of 2016

);

(b)

"rules" means the Bureau of Indian Standards Rules, 2017;

(c)

all other words and expressions used in these regulations and not defined but defined in the Act or the rules shall have the same meanings, as respectively, assigned to them in the Act or the rules.

3.

Constitution of Advisory Committees.

- The Governing Council shall constitute the following Advisory Committees under section 5 of the Act, namely:-

(a)

Finance Advisory Committee;

(b)

Conformity Assessment Advisory Committee;

(c)

Standards Advisory Committee;

(d)

Testing and Calibration Advisory Committee;

(e)

Consumer Affairs Advisory Committee.

4.

Composition and Functions of Finance Advisory Committee.

(1)

The Finance Advisory Committee shall consists of the following members, namely:-

(i)

Special Secretary or Additional Secretary and Financial Adviser, Ministry of Consumer Affairs, Food and Public Distribution - Chairman;

(ii)

Director General of the Bureau;

(iii)

Additional Secretary or Joint. Secretary, Department of Consumer Affairs in the Ministry of Consumer Affairs, Food and Public Distribution;

(iv)

one representative of the National Institute of Financial Management, Faridabad;

(v)

one representative of the Office of Comptroller General of Accounts;

(vi)

Chief Financial Officer of Bureau of Energy Efficiency;

(vii)

any other member, as nominated by the Chairman;

(viii)

Deputy Director General (Finance) of the Bureau - Member-Secretary.

(2)

The Finance Advisory Committee shall advise on policy matters relating to -

(i)

long-term mobilisation of financial resources;

(ii)

annual budget; and

(iii)

annual financial statements.

5.

Composition and Functions of Conformity Assessment Advisory Committee.

(1)

The Conformity Assessment Advisory Committee shall consists of the following members, namely :-

(i)

Director General of the Bureau - Chairman;

(ii)

one representative not below the rank of Joint Secretary or equivalent from each of the following -

(a)

Department dealing with Trade Policy (World Trade Organisation or Technical Barriers to Trade) in the Ministry of Commerce and Industry;

(b)

Standardisation, Testing and Quality Certification;

(c)

Food Safety and Standards Authority of India;

(d)

Director General, Services Export Promotion Council;

(e)

Department of Consumer Affairs in the Ministry of Consumer Affairs, Food and Public Distribution;

(f)

Ministry of Electronics & Information Technology.

(iii)

one representative from Industry, Trade and their Associations;

(iv)

one representative from any recognised consumer organisation;

(v)

any other member as nominated by the Chairman;

(vi)

Deputy Director General (Certification) of the Bureau - Member-Secretary.

(2)

The Conformity Assessment Advisory Committee shall advise on -

(i)

policy matters relating to Conformity Assessment;

(ii)

development of conformity assessment activities of the Bureau in the country and abroad;

(iii)

co-ordination of conformity assessment activity with other organisations in the country and abroad;

(iv)

surveys and surveillance;

(v)

review conformity assessment schemes and suggest improvements;

(vi)

other matters regarding conformity assessment.

6.

Composition and Functions of Standards Advisory Committee.

(1)

The Standards Advisory Committee shall consists of the following members, namely :-

(i)

Director General of the Bureau - Chairman;

(ii)

one representative not below the rank of Joint Secretary or equivalent from each of the following -

(a)

Ministry of Commerce and Industry;

(b)

Ministry of Environment, Forest and Climate Change;

(c)

Ministry of New and Renewable Energy;

(d)

Ministry of Housing and Urban Affairs;

(e)

Service Sector Organisation (Tourism or Education or Railways or Transport);

(f)

other Standard Development Organisations (Directorate of Standardisation, Ministry of Defence or Automotive Research Association of India or Indian Road Congress or Research Designs and Standards Organisation, Ministry of Railways) ;

(g)

Bureau of Energy Efficiency;

(h)

Quality Council of India;

(i)

Institute of repute in the field of academics;

(j)

Department of Consumer Affairs in the Ministry of Consumer Affairs, Food and Public Distribution;

(iii)

one representative from Industry, Trade and their Associations;

(iv)

one representative from any recognised consumer organisation;

(v)

any other member as nominated by the Chairman;

(vi)

Deputy Director General (Standardisation) of the Bureau - Member-Secretary.

(2)

The Standards Advisory Committee shall advise on policy matters relating to -

(i)

harmonious development of standards;

(ii)

establishment, publication, review and promotion of Indian Standards;

(iii)

collaboration with other standards formulating organisations within the country and abroad;

(iv)

Bureau's role in the activities of international organisations in relation to standards;

(v)

formulation of guidelines for the effective functioning of Division Councils and reviewing their activities;

(vi)

recognition or accreditation of institutions engaged in area of standards formulation in India or abroad;

(vii)

capacity building or trainings in area of standardisation;

(viii)

review standards formulation on important subjects and emerging fields and suggest improvements, constitution of joint committees in multi-disciplinary areas;

(ix)

other matters regarding standardisation.

7.

Composition and Functions of Testing and Calibration Advisory Committee.

(1)

The Testing and Calibration Advisory Committee shall consists of the following members, namely : -

(i)

Director General of the Bureau - Chairman;

(ii)

one representative not below the rank of Joint Secretary or equivalent from each of the following -

(a)

National Physical Laboratory;

(b)

Central Food Technological Research Institute (CFTRI), Mysore;

(c)

Laboratory of any one of the Indian Institute of Technology;

(d)

National Institute of Solar Energy, Gurgaon;

(e)

Indian Toxicology Research Centre, Lucknow;

(f)

Director General of Quality Assurance;

(g)

National Chemical Laboratory;

(h)

Department of Consumer Affairs in the Ministry of Consumer Affairs, Food and Public Distribution;

(i)

National Accreditation Board for Testing and Calibration Laboratories (NABL);

(iii)

one representative from a private lab of national or international repute;

(iv)

any other member as nominated by the Chairman;

(v)

Deputy Director General (Laboratories) of the Bureau - Member-Secretary.

(2)

The Testing and Calibration Advisory Committee shall advise on policy matters relating to -

(i)

establishment, operation and expansion of laboratories;

(ii)

testing activities to support research and development programmes of the Bureau;

(iii)

participation in national and international accreditation system for testing and also for calibration;

(iv)

formulation of guidelines for facilitating the Bureau in recognising any laboratory in India or abroad for the purpose of testing and associated activities;

(v)

other matters regarding laboratories.

8.

Composition and Functions of Consumer Affairs Advisory Committee.

(1)

The Consumer Affairs Advisory Committee shall consists of the following members, namely : -

(i)

Director General of the Bureau - Chairman;

(ii)

Additional Secretary or Joint Secretary, Department of Consumer Affairs in the Ministry of Consumer Affairs, Food and Public Distribution;

(iii)

three representatives from recognised consumer organisations;

(iv)

one representative from Federation of Indian Chambers of Commerce and Industry;

(v)

one representative from Confederation of Indian Industry;

(vi)

any other member as nominated by Chairman;

(vii)

Deputy Director General (Consumer Affairs) of the Bureau - Member-Secretary.

(2)

The Consumer Affairs Advisory Committee shall advise on policy matters relating to -

(i)

standards formulation activity to ensure that consumer interests and consumer view points are adequately taken care of;

(ii)

ways and means to propagate the Certification Marks activity as a means of consumer welfare;

(iii)

need for changes in the existing activities and structure of Bureau of Indian Standards, so as to include the new product or service areas concerning the consumer welfare;

(iv)

communication between Bureau of Indian Standards and the common consumers with the objective of enhancing the public image of Bureau of Indian Standards;

(v)

participation of consumer organisations in standards formulation work;

(vi)

liaison with Central Consumer Protection Council; and

(vii)

any other matter related to consumer interest or grievances.

9.

Terms and Conditions of office of Chairman and Members.

(1)

The term of office of the Chairman and other members of an Advisory Committee shall be two years and they shall be eligible for re-appointment.

(2)

The Chairman or any other member of an Advisory Committee may resign his office by forwarding his letter of resignation under his own hand to the President of the Governing Council, and such resignation shall take effect from the date of its acceptance by the President or on the expiry of a period of one month from the date of its receipt by the President, whichever is earlier.

(3)

When a vacancy occurs by resignation of a Chairman or any other member under sub-regulation (2) or otherwise, the Governing Council shall take steps to fill that vacancy by appointing suitable person and the Chairman or the other member, as the case may be, so appointed shall hold office for the remainder of the term of office of the Chairman or the other member in whose place he is appointed.

10.

Meeting of Advisory Committees.

(1)

A meeting of each Advisory Committee shall be held at least once in a calendar year.

(2)

A notice of not less than seven days, from the date of issue, shall be ordinarily given to the members for each meeting of an Advisory Committee.

(3)

Every notice of a meeting of an Advisory Committee shall specify the place and the day and hour of the meeting.

(4)

The Chairman of an Advisory Committee shall cause to be prepared and circulated to the members an agenda for the meeting, which shall include such matter as may be referred to the Advisory Committee by the Governing Council or Executive Committee or Director General or Central Government, at least three days before such meeting.

(5)

The quorum for a meeting of an Advisory Committee shall be three.

(6)

The minutes of proceedings of each meeting shall be circulated to each member of an Advisory Committee and shall be confirmed at the next meeting with or without modifications, as the case may require.

11.

Travelling and Daily Allowances to the Members of the Advisory Committees.

(1)

The members of an Advisory Committees including the Chairman of each such Committee, representing the Central Government, State Governments, Union territories, Statutory and autonomous bodies (other than those specially approved by the Executive Committee), public sector undertakings, trade, industry and their associations, and the Members of Parliament, shall not be eligible to draw any travelling or daily allowance from the funds of the Bureau.

(2)

Travelling and daily allowances to the members of the Advisory Committees, including Chairman other than those specified in sub-regulation (1), while travelling within the country with prior concurrence of the Director General, may be admissible from the Bureau for attending meetings and discharging any duty assigned by the Governing Council or the Committee concerned.

(3)

The rates of travelling and daily allowances admissible to the Chairman and members under sub-regulation (2) shall be the same as applicable to a non-official member attending the meetings of Committees set up by the Central Government.

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